# Binance U.S. Nexus Assessment Form

Please be thorough and follow the instructions herein, as incomplete answers may delay our ability to proceed in the onboarding process. Nothing in this Customer Questionnaire is intended to be legal advice. Should you have questions regarding your status or if you are not sure of an answer, please consult your legal counsel before answering.

## Section A : Acknowledgment and Signature

IN WITNESS WHEREOF, the signatory below represents that all information herein is true, accurate and complete as of the date hereof, and may be relied upon by Binance.com. You acknowledge that Binance.com will be relying on this information to determine whether the business entity identified below may legally transact on Binance.com and you agree to notify Binance.com promptly if facts or circumstances change that cause any prior representation to become inaccurate or incomplete.

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| Name of Business Entity | Nexus Co., Ltd. |
| Name & Role of the Authorized Signatory | Hyun Guk Chang<br>CEO |
| Date & Signature | |

### Instructions to complete the U.S. Nexus Assessment Form

| Section | Requirements |
|---|---|
| Section B - U.S. Nexus Customer Questionnaire | This section must be filled by **ALL** the business entities. |
| Section C1 - U.S. Ownership and Control Attestation | This attestation must be duly signed by each of the individuals falling under any one of the below criteria:<br>● All the U.S. resident Ultimate Beneficial Owner(s); and<br>● All the legal representatives of the U.S. Intermediate Beneficial Owner entitie(s); and<br>● All the U.S. shareholder(s) holding in the aggregate more than 10% of the beneficial ownership;and<br>● All the U.S. resident Director(s). |
| Section C2 - U.S. parent / Intermediate Beneficial Owner(s) | This section must be filled by the business entity if it has a U.S. parent / intermediate beneficial owners |
| Section D - Algorithmic trading | This section must be filled by the business entity that is engaged in Algorithmic Trading and/or has a U.S. person that works on any aspects of the Algorithms used for trading on Binance.com |
| Section E - Investment Funds or Collective Investment Vehicles | This section must be filled by the business entity that is, or that Binance determines by a review of the available documentation, an investment fund or other collective investment vehicle. |

BINANCE EXCHANGE

## Section B : U.S Nexus Customer Questionnaire - Applicable to ALL customers

Please answer the questions on this Customer Questionnaire. By completing and returning this Customer Questionnaire, you are representing that your responses to these questions are accurate and complete.

| Questions | Yes | No | Comments |
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| **1.** Does any person or persons residing in or operating from the United States[1] primarily direct, control, or coordinate the activities of the applying business entity[2] ? | | V | Only one of the four Outside Director resides in the United States. |
| **2.** Does the applying Business Entity have operations in or income derived from the United States? | V | | |
| **2a.** If yes to (2), please describe the U.S. operations and indicate the amount of income derived from the U.S. for the current tax year. | Description of the U.S. operations : Games listed on Steam, App Store and Google Play<br>The % amount of U.S. income : 0.1116%<br>The # Absolute Number : US$ 12,881.82 | | |
| **2b.** If not to (2), please describe whether the Business Entity has future plans to have operations in the United States or expects income derived from the United States, and the expected amount and percentage of such future operations or income. | | | Description of the future plan for U.S. operations :<br>The expected % amount of U.S. income : |
| **3.** Is the applying Business Entity required to file tax returns and pay taxes in the United States?<br>*If Yes, please provide an explanation on the reasons why the Business Entity is required to file tax returns in the United States.* | | V | We only pay taxes, which are pre-deducted. |
| **4.** Is more than 50% of the applying Business Entity's total income from the prior tax year derived from business operations or activities located in the U.S.? | | V | |
| **5.** Does the applying Business Entity deploy or otherwise utilize algorithms for trading on Binance.com? | | V | |

[1] In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam, American Samoa, U.S. Virgin Islands and United States Minor Outlying Islands (including Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Islands, Navassa Island, Palmyra Atoll, and Wake Island).

[2] For the purpose of answering this question, all relevant activities of the Business Entity should be considered, not just the day-to-day trading activities. All relevant facts and information should be considered, including U.S. person beneficial ownership which may be relevant in determining control.

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| **6.** If you answered yes to Question 5, is any person that works on any aspect of the above mentioned algorithm located in the United States? | | | If you answered "Yes" to this question, please complete section D below. |
| **7.** Does the Business Entity or any affiliate of the Business Entity have any United States regulatory registrations *(e.g., futures commission merchant, introducing broker, registered investment advisor, broker-dealer, swap dealer, etc.)*? | | V | *If yes, please list all registrations and the entities holding them in Appendix 2 below. Please also provide details about the context of use of the U.S. registrations by the business entity, and clarify whether the registrations are active or not, and whether the business entity intends to renew these registrations.* |
| **8**.If you responded "Yes" to Question 7, does the Business entity in any situation serve any customers through the U.S. registered entity? | | | |
| **9**. If any affiliate of the applying Business Entity has a Broker-Dealer / MSB registration, what controls are in place to evidence ring-fencing the activity of the affiliate from the applying business entity? | | | |
| **10**. Does the business entity rely on any U.S. service providers for its operations ? | V | | *If Yes,please provide in Appendix 3 below the name of the U.S. entities and describe the relationship between the business entity and the U.S. entities (please indicate if the service providers are affiliated with the Business Entity or part of the same corporate family), as well as the type of services provided by each of the U.S. entities.* |
| **11.** Is the Business Entity defined and/or licensed as a VASP or Broker?[3] | | V | |
| **11.a If you answered "yes" to question 11,** does the Business Entity have customers that are :<br>i) Persons who are residents of the U.S. or located in the U.S.; or<br>ii) a business entity incorporated in the United States; or<br>iii) a business entity whose principal place of business or "nerve center" *(i.e., the location from which the activities of the business entity are primarily directed, controlled and coordinated)* is in the U.S.? | | | |

[3] "Virtual Asset Service Provider" is any natural or legal person as a business conducts one or more of the following activities or operations for or on behalf of another natural or legal person:
(1) Exchange between virtual assets and fiat currencies;
(2) Exchange between one or more forms of virtual assets;
(3) Transfer of virtual assets; and
(4) Safekeeping and/or administration of virtual assets or instruments enabling control over virtual assets;
(5) Participation in and provision of financial services related to an issuer's offer and/or sale of a virtual asset.

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| **12**. How was the Business Entity initially capitalized? Please include details of the persons/entities that capitalized the Business Entity and where such persons/entities are located. | We are a public listed company in S. Korea. | | |
| **13.** Will ongoing capital contributions be made to the applying business entity?<br>*If Yes, please provide more details. Please include details of the persons/entities that will contribute to the capitalization of the Business Entity and where such persons/entities are located.* | | V | We are a publicly listed company, therefore all relevant information is available to the public.<br><br>As of the signed date, there are no plans of capital contributions other than publicly accessible information. |
| **14**. Is the Business Entity required, in any country (not limited to the United States), to obtain a regulatory license or registration as an investment fund, collective investment vehicle, commodity pool operator, investment manager, or any other similar entity type? | | V | If yes, provide registration and country information.<br><br>If you answered "Yes" to this question, please complete section E below. |
| **15.** Do the investors pay fees to an investment manager? | | V | If you answered "Yes" to this question, please complete section E below. |

## Section C-I : Attestation for a Business Entity with U.S. Director, U.S. Beneficial Ownership and/or U.S Parent / Intermediate Beneficial Owner "IBO" Corporate Entity

Please provide the below attestation duly signed by each of the individuals falling under one of the below categories. You may provide all signatures in the same form :

I. A United States resident Beneficial Owner holding in the aggregate more than 10% of the beneficial ownership;
II. A legal representative of a United States corporate Beneficial Owner holding in the aggregate more than 10% of the beneficial ownership;
III. A United States resident Director.

**Attestation :**

The signatory below represents that all information herein is true, accurate and complete as of the date hereof, and may be relied upon by Binance.com. You acknowledge that Binance.com will be relying on this information to determine whether the business entity identified below may legally transact on Binance.com and you agree to notify Binance.com promptly if facts or circumstances change that cause any prior representation to become inaccurate or incomplete.

I attest that neither I nor, to the best of my knowledge, any person or persons that is a resident of the United States[4] or otherwise located in the United States, in any capacity (including but not limited to as a Director, Significant Controller, Shareholder, Corporate Office, or Member of the Board of Directors) , primarily direct(s), control(s), or coordinate(s) the activities of Nexus Co., Ltd. (i.e., the business entity trading on Binance.com), including, but not limited to by exerting a controlling influence over Nexus Co., Ltd.'s trading-related management and policies, or by entering into any agreement that substantially limits the discretion of Nexus Co., Ltd.'s management over its trading activities. I further attest that neither I nor, to the best of my knowledge, any person or persons that is a resident of the United States or otherwise located in the United States, in any capacity, makes decisions related to the day-to-day activities, including trading activities, of Nexus Co., Ltd.

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| U.S. Beneficial Owner (s) Signature / U.S Director Signature / U.S. Parent or IBO Corporate entity Authorized Signatory | |
| Name & Role | SOOJIN CHOUNG<br>Outside Director |
| Date | |

## Section C-II : Questionnaire for U.S. Parent / Intermediate Beneficial Owner "IBO" Corporate Entity

If your Business Entity has a U.S. Parent / IBO Corporate Entity, please answer the questions below. By completing and returning this Questionnaire, you are representing that your responses to these questions are accurate and complete.

Definitions to underlined terms are included in Appendix 1. Nothing in this Questionnaire is intended to be legal advice. Should you have questions regarding your status or if you are not sure of an answer, please consult your legal counsel before answering.

| Questions | Yes | No | Comments |
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| **1.** Does the Business Entity have access to sufficient assets, including access to the services of employees (or other service providers) as well as tangible and intangible assets, to operate its business?<br><br>Note: For the purpose of this response, do not include assets that the Business Entity can access only through an affiliate or | | | |

[4] In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam, American Samoa, U.S. Virgin Islands and United States Minor Outlying Islands (including Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Islands, Navassa Island, Palmyra Atoll, and Wake Island).

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| parent entity located in the United States. | | | |
| **2.** Does the Business Entity satisfy its direct and allocated expenses (e.g., payroll, equipment, vendors, office space, royalty payments for intellectual property rights) in the ordinary course? Do not include liabilities payable to an affiliate or parent entity located in the United States.<br><br>*If not , please provide details on why the business entity doesn't have sufficient cash of its expenses* | | | |
| **3.** Are any expenses payable and/or accruing fees directly within the US or to US parties?<br><br>*If yes, please provide details.* | | | |
| **4.** Does the Business Entity separate its cash and other liquid assets from its parent or affiliate entities?<br><br>*If Yes, please provide details on how the Business Entity separates its cash and other liquid assets from its group or United States affiliate entities.*<br><br>*If not, please provide an explanation.* | | | |
| **5.** Does the Business Entity (i) maintain and update its own books and records and (ii) maintain books of account (including with respect to items of profit and loss) that are separate and apart from any parent or affiliated entity? | | | |
| **6.** Are the Business Entity's books and records subject to an audit to ensure compliance with GAAP, IFRS or a similar system of accounting? | | | |
| **7.** Does the Business Entity engage in business planning and budgeting exercises (at least once annually) for purposes of determining whether it will be able to satisfy its ordinary-course liabilities? | | | |
| **8.** Does the Business Entity control the decision to distribute its profits to the parent (or Ultimate Beneficial Owner)? | | | |
| **9a.** Does the Business Entity have any intercompany service agreements with a U.S. parent or affiliate?<br><br>*If Yes, please provide a copy of the service agreements.* | | | |

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| **9b.** If so, do the terms of the intercompany service agreements meet the "arm's-length" standard of Section 482 of the United States Internal Revenue Code of 1986, as amended, and the Treasury regulations thereunder (including Treas. Reg. § 1.482-1(b), which defines the "arm's length" standard generally)?<br><br>Note: Generally, arm's-length transactions are those with terms and conditions substantially the same as those prevailing for comparable transactions with nonaffiliates or that would be offered to nonaffiliates. | | | |
| **10.** Does at least one (1) director of the Business Entity reside in the country of its operating address? | | | |
| **11.** How many FTE employees are dedicated to the operations of the Business Entity? Please specify a number. | | | |

## Section D : Customer Questionnaire for Algorithmic Trading

[8] In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam,

If your Business Entity is engaged in Algorithmic trading and has a U.S. person that works on any aspects of the Algorithms used for trading on Binance.com, please answer the below questions.

[9] "Authorized Trader" includes any natural person who by power of attorney or otherwise actually directs the trading of the user account. A natural person who makes specific decisions to place, cancel, or modify orders for a trading account, for example, would be considered as actually directing the account. Directing trading could also include situations in which a controller exercises discretion over the trading of the account, either directly or indirectly. In the case of indirect control, a controller might provide instructions to another person regarding trading decisions. Persons whose authority in the hierarchy of an organization would permit them to direct the trading of an account if they so choose are not account controllers unless they actually direct such an account. Binance would not expect, for example, to see an organization's CEO or COO identified as an authorized trader unless such person actually directs the trading of the account. Similarly, persons whose responsibility in an organization would make them responsible for the financial performance of an account are not trading account controllers unless they also actually direct the account.

In the context of algorithmic trading, if control over the algorithm's trading is divided among individuals over the course of a trading day, all the individuals should be considered Authorized Traders if they meet the Authorized Trader definition.

[8] In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam,

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| **1.** Is any U.S.-located[8] Person[9] with respect to any algorithmic trading on Binance.com? | | | *If yes, please provide in Appendix 4 the name of the individual(s), their role and the entity employing them.* |
| **2.** Does any US-located person have the responsibility to oversee day-to-day risk parameters/limits that apply to algorithms used for trading on Binance.com? | | | *If yes, please provide in Appendix 4 the name of the individual(s),their role and the entity employing them.* |
| **3.** Does any US-located person have the responsibility to direct, control, or implement changes to the algorithm used for trading on Binance.com? | | | *If yes, please provide in Appendix 4 the name of the individual(s), their role and the entity employing them.* |
| **4**. Does any US-located person have the responsibility to determine how much capital is allocated to algorithms used for trading on Binance.com? | | | *If yes, please provide in Appendix 4 the name of the individual(s), their role and the entity employing them.* |
| **5.** Does any US-located researcher support the development or execution of trades on Binance.com ?<br><br>*If yes, please provide detail.* | | | |
| **6.** Is any part of the development of Algorithmic trades developed in part or whole in the U.S.?<br><br>*If yes, please provide detail.* | | | |

[8] In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam,

## Section E : Investment Funds or Other Collective Investment Vehicles

If your Business Entity is a collective investment vehicle or investment fund, please answer the below questions.

| Questions | Yes | No | Comments |
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| **1.** Does the applying Business Entity utilize an investment manager or an Authorized Trader[8] that is a U.S.-located[9] Person? | | | |
| **2.** Is the applying Business Entity affiliated with a U.S. feeder fund as part of its corporate structure?<br><br>*If yes, confirm what percentage of the US-affiliated feeder fund is subscribed to the master fund.* | | | |

American Samoa, U.S. Virgin Islands and United States Minor Outlying Islands (including Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Islands, Navassa Island, Palmyra Atoll, and Wake Island).

9 "Authorized Trader" includes any natural person who by power of attorney or otherwise actually directs the trading of the user account. A natural person who makes specific decisions to place, cancel, or modify orders for a trading account, for example, would be considered as actually directing the account. Directing trading could also include situations in which a controller exercises discretion over the trading of the account, either directly or indirectly. In the case of indirect control, a controller might provide instructions to another person regarding trading decisions. Persons whose authority in the hierarchy of an organization would permit them to direct the trading of an account if they so choose are not account controllers unless they actually direct such an account. Binance would not expect, for example, to see an organization's CEO or COO identified as an authorized trader unless such person actually directs the trading of the account. Similarly, persons whose responsibility in an organization would make them responsible for the financial performance of an account are not trading account controllers unless they also actually direct the account.

In the context of algorithmic trading, if control over the algorithm's trading is divided among individuals over the course of a trading day, all the individuals should be considered Authorized Traders if they meet the Authorized Trader definition.

8 "Authorized Trader" includes any natural person who by power of attorney or otherwise actually directs the trading of the user account. A natural person who makes specific decisions to place, cancel, or modify orders for a trading account, for example, would be considered as actually directing the account. Directing trading could also include situations in which a controller exercises discretion over the trading of the account, either directly or indirectly. In the case of indirect control, a controller might provide instructions to another person regarding trading decisions. Persons whose authority in the hierarchy of an organization would permit them to direct the trading of an account if they so choose are not account controllers unless they actually direct such an account. Binance would not expect, for example, to see an organization's CEO or COO identified as an authorized trader unless such person actually directs the trading of the account. Similarly persons whose responsibility in an organization would make them responsible for the financial performance of an account are not trading account controllers unless they also actually direct the account.

In the context of algorithmic trading, if control over the algorithm's trading is divided among individuals over the course of a trading day, all the individuals should be considered Authorized Traders if they meet the Authorized Trader definition.

9 In addition to the 50 states and the District of Columbia, the following territories are part of the United States: Puerto Rico, Northern Marianas Islands, Guam, American Samoa, U.S. Virgin Islands and United States Minor Outlying Islands (including Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Islands, Navassa Island, Palmyra Atoll, and Wake Island).

## Section E-II : Attestation for a Business Entity that is an Investment Fund or Collective Investment Vehicle

Please provide the below attestation duly signed by either the Investment Manager or Fund Administrator:

**Attestation :**

The signatory below represents that all information herein is true, accurate and complete as of the date hereof, and may be relied upon by Binance.com. You acknowledge that Binance.com will be relying on this information to determine whether the business entity identified below may legally transact on Binance.com and you agree to notify Binance.com promptly if facts or circumstances change that cause any prior representation to become inaccurate or incomplete.

I attest that: _____ (i.e., the business entity trading on Binance):

- Is not incorporated, or established under the laws of the United States
- Does not have its principal place of business in the United States;
- Does not utilize an investment manager or authorized trader that is a US resident or otherwise located in the United States;
- No person or persons that is resident of the United States or otherwise located in the United States primarily direct(s), control(s), or coordinate(s) the activities of _____ (Business Entity) on Binance, including but not limited to by exerting a controlling influence over _____'s day-to-day trading-related management and policies; and
- U.S. Persons do not own, directly or indirectly, in the aggregate 50% or more of the beneficial interests of the investment fund.

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| Investment Manager or Fund Administrator Signature | |
| Name & Role | |
| Date | |

# Appendix 1 to Section II: Defined Terms

Affiliate (or "affiliated") means, with respect to the Business Entity, any Person where (i) the Business Entity owns a majority interest, directly or indirectly, in such Person; (ii) a third party directly or indirectly owns a majority interest in the Business Entity and such Person; or (iii) directly, or indirectly through one or more intermediaries, controls, is controlled by or is under common control with such Business Entity.

Audit means an objective examination or inspection of the books and records or books of account of a Person as conducted by an unaffiliated third party.

Books and records means the books, accounts, records, memoranda, correspondence, papers and other documentation or information used in connection with the management and operation of the Business Entity.

Books of account means the records, books, ledgers, registers and similar records in which the financial information and transactions of the Business Entity are recorded and maintained.

Control (including the terms "controlled by" and "under common control with") means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting interests, as trustee or executor, as general partner or managing member, by contract or otherwise, including the ownership, directly or indirectly, of interests having the power to elect a majority of the board of directors or similar body governing the affairs of such Person.

Direct and allocated expenses means both (i) the liabilities, debts, expenses, fees and costs that are incurred by the Business Entity and (ii) the allocable portion of expenses incurred by any broader group of which the Business Entity is a party (including any affiliates) for the benefit of the Business Entity.

FTE employees means full-time equivalent employees, where part-time employees can be added together to derive the full-time equivalent. For example, if 20 people work solely, and full-time, on the operations of a Business Entity, the Business Entity has 20 FTEs. If all 20 of those employees work half-time, the Business Entity has 10 FTE employees. Similarly, if all 20 of those employees work full-time but devote half their time to the operations of a separate entity, the Business Entity has 10 FTE employees. For purposes of this definition, the number of hours considered "full time" is the number of hours actually considered "full time" by the Business Entity (but if that number is less than 30 hours per week, then "full time" shall mean 30 hours per week).

GAAP means the United States generally accepted accounting principles and practices.

IBO Corporate Entity means a non-natural person who, directly or indirectly, ultimately owns or controls, including through a trust structure, 25% or more of the issued share capital or interests in the legal entity or arrangement.

IFRS means International Financial Reporting Standards as issued by the International Accounting Standards Board from time to time.

Intangible assets means an asset that are considered to be intangible assets under GAAP, including customer lists, computer software, copyrights, trade names, trademarks, patents, franchises and licenses.

Intercompany service agreements means agreements or contracts, formal or informal, made between two or more affiliates for the provision of any service.

Ordinary-course liabilities means liabilities that are incurred by the Business Entity in the ordinary course of business.

Parent means the non-natural Person that possesses the ability to control the Business Entity.

Person means an individual, corporation, partnership, limited liability company, limited liability partnership, syndicate, person, trust, association, organization or other entity, and including any successor, by merger or otherwise, of any of the foregoing.

Tangible assets means all tangible personal property and interests therein, including machinery, computers and accessories, furniture, office equipment, communications equipment, inventory, vehicles, automobiles and other such physical assets.

Ultimate Beneficial Owner means the natural person(s) who, directly or indirectly, ultimately owns or controls, including through a trust structure, the Business Entity.

## Appendix 2 to Section B: U.S. regulatory registrations

| Name & Type of the U.S. registration | Is the U.S. regulatory registration currently active? (Y/N) | Is there a plan to renew the U.S. regulatory registrations ? (Y/N) | Legal Name of the entity holding the U.S. registration | Relationship of the entity to the applying business entity |
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## Appendix 3 to Section B: U.S. service providers

| Type of the service provided by the | Legal Name of the U.S. entity providing | Relationship of the U.S. entity to the |
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| U.S. entity | the services | applying business entity |
|---|---|---|
| Application marketplace | Apple Inc. | Not an affiliate |
| Application marketplace | Google LLC. | Not an affiliate |
| Gaming platform | Valve Corporation | Not an affiliate |
| Contract audit | Certified Kernel Tech LLC | Not an affiliate |
| Privacy law, cyber security consulting | VeraSafe, LLC | Not an affiliate |
| Law firm | Morrison Cohen, LLP | Not an affiliate |
| Digital asset infrastructure platform | Fireblocks Ltd | Not an affiliate |
| | | |

## Appendix 4 to Section D: U.S. located individuals involved in the Algorithmic Trading

| Name of the individual(s) involved in any aspect of the algorithmic trading | Role and responsibilities of the individual(s) | Name of the entity employing them |
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